

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ADRIAAN CORNELIUS BRAND,

Petitioner

VS.

HAKEEM OLATUNDE OSENI II,

Respondent

) Case Number: FDI-26-802632

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, SPOUSAL OR PARTNER
SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Adriaan Cornelius Brand and Respondent Hakeem Olatunde Oseni II.
- 2) On 3/2/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/20/18 and date of separation is 2/27/26 for a marriage of 7 years and 5 months.
- 3) On 3/3/26, Petitioner filed a Proof of Service of Summons indicating Respondent was served by personal service on 3/2/26.
- 4) Respondent did not file a Response and Request for Dissolution.
- 5) On 5/7/26, Petitioner filed an Income and Expense Declaration.
- 6) On 5/11/26, Petitioner filed an ex parte Request for Order seeking emergency orders for temporary monthly spousal support and attorney's fees and costs.
- 7) On 5/11/26, the Court denied Petitioner's request for emergency relief and set the matter for regular hearing on 6/30/26.
- 8) At the prior 6/30/26 hearing, the Court continued the matter to 8/25/26 for lack of service.

1 9) There is still no Proof of Service on file indicating Petitioner's 5/11/26 Request for Order was
2 served on Respondent.

3 10) Respondent did not file a Responsive Declaration.

4 **B. Findings and Order**

5 1) The Court finds that Petitioner's 5/11/26 Request for Order was still not served at least 16 Court
6 days prior to the hearing date – as required by Code of Civil Procedure section 1005(b) – despite
7 the Court providing Petitioner additional time to effectuate service.

8 2) As such, the hearing on Petitioner's 5/11/26 Request for Order is VACATED and Petitioner's
9 requests for temporary monthly spousal support and attorney's fees and costs are DENIED
10 without prejudice (i.e. Petitioner may refile).

11 3) The Court will prepare the Findings and Order After Hearing.
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